

Authority for Personal Data
P.O. Box 93374, 2509 AJ The Hague
Hoge Nieuwstraat 8, 2514 EL The Hague
T 070 8888 500 - F 070 8888 501
autoriteitpersoonsgegevens.nl
The Minister of Foreign Affairs
P.O. Box 20061
2500 EB THE HAGUE

Date

2 July 2024

Our reference

z2024-016315

Your letter of

24 May 2024

Subject

Legislative assessment draft for the amendment of the Sanctions Regulation on the territorial integrity of Ukraine 2014

Dear Ms. Bruins Slot,

In your letter dated 24 May 2024, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, fourth paragraph, of the General Data Protection Regulation regarding the draft for the Regulation of the Minister of Foreign Affairs dated [...] May 2024, no. Min-Buza.2024.[...]-[...], amending the Sanctions Regulation on the territorial integrity of Ukraine 2014 (hereinafter: the draft).

The AP has no comments on the draft.

This legislative assessment will be published on the AP's website within two weeks.

Sincerely,

Authority for Personal Data,

Aleid Wolfsen
Chairman

Date

2 July 2024

Our reference

z2024-016315

2/2

- Annex

--*--

Assessment Framework AP

The AP examines whether the draft concerning the processing of personal data is in accordance with the Charter of Fundamental Rights of the European Union (EU), the GDPR (Regulation 2016/679), or the Police and Justice Directive (Directive 2016/680), the general legal principles of the EU, and other relevant law, whereby it must be sufficiently demonstrated that the principle of proportionality is met, by:

1. the draft being suitable to achieve the pursued objective of general interest or the protection of the rights and freedoms of others (suitability);
2. the objective cannot reasonably be achieved as effectively by other means that are less intrusive to the fundamental rights of the individuals concerned (subsidiarity);
3. the interference is not disproportionate to that objective, which particularly implies a weighing of the

importance of the objective and the severity of the interference (proportionality);

4. the draft is sufficiently clear and precise regarding the scope and is predictable in application (legal certainty);

5. the draft sufficiently indicates under which circumstances and conditions personal data may be processed, thereby ensuring that the interference is limited to what is strictly necessary (substantive and procedural safeguards); and

6. the draft is binding under national law (bindingness under national law).

The AP pays particular attention to the rights of the individuals concerned and the compliance of the draft with Article 6, first and third paragraphs, and Article 9 of the GDPR (Regulation 2016/679), or Articles 8 and 10 of the Police and Justice Directive (Directive 2016/680) and with the principles established in Article 5 of the GDPR or Article 4 of the Directive. This implies among other things that:

(a) processing must be lawful, fair, and transparent in relation to the data subject;

(b) personal data may only be collected for specified, explicitly defined, and legitimate purposes; and

(c) processing must be adequate, relevant, and limited to what is necessary for the purposes.

--*--